



Torres Strait Fisheries (Coral and Live Rock) Management Instrument 2020

The Protected Zone Joint Authority makes this instrument under paragraph 35(1)(a) of the *Torres Strait Fisheries Act 1984*, in accordance with a decision of its members under section 40 of the *Torres Strait Fisheries Act 1984*.

Dated 27 August 2020

Senator the Hon Jonathon Duniam
Member of the Protected Zone Joint Authority
Assistant Minister for Forestry and Fisheries
Parliamentary Secretary to the Minister for Forestry and Fisheries
for and on behalf of the Protected Zone Joint Authority

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1 Name

This instrument is the *Torres Strait Fisheries (Coral and Live Rock) Management Instrument 2020*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. <i>The whole of this instrument</i>	<i>30 December 2020</i>	<i>30 December 2020</i>

- Note 1: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.
- Note 2: A prohibition contained in this instrument comes into force on the day on which the instrument is published under subsection 16(9) of the Act or on such later day as is specified in the instrument (see subsection 16(4)) of the Act.
- Note 3: The requirements of subsection 16(9) of the Act have been met prior to the registration of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under section 16 of the Act.

- Note: The Authority may exercise the powers of the Minister under section 16 of the Act in respect of a Protected Zone Joint Authority fishery: see paragraph 35(1)(a) of the Act.

4 Definitions

- Note: A number of expressions used in this instrument are defined in section 3 of the Act, including the following:
- (a) community fishing;
 - (b) fish;
 - (c) traditional inhabitant;
 - (d) traditional fishing.

In this instrument:

Act means the *Torres Strait Fisheries Act 1984*.

Coral means live coral of the class *Anthozoa* and *Hydrozoa*.

Live rock means dead coral skeletons or fragments colonised with algae and other organisms.

Protected Zone means the area described in Annex 9 to the *Torres Strait Treaty 1985*.

PZJA Arrangement means the document titled “*Arrangement between the Commonwealth and the State of Queensland under section 31 of the Torres Strait Fisheries Act 1984*” dated 17 March 1999 and published on the Federal Register of Legislation, as that document exists at the commencement of this instrument.

Note: The PZJA Arrangement could in 2020 be viewed on the website of the Federal Register of Legislation (<https://www.legislation.gov.au/Details/F2008B00750>).

5 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Prohibition on taking, processing or carrying coral or live rock

- (1) Pursuant to paragraph 16(1)(a) of the Act, the taking, processing or carrying of the coral or live rock, is prohibited in the area of the Protected Zone.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

Schedule 1—Repeals

Torres Strait Fisheries Management Instrument No. 6 F2011L01811

1 The whole of the instrument

Repeal the instrument